NATIONAL LABOR RELATIONS BOARD (R-26)
Washington, D. C.

Mr Hushing

FOR RELEASE UPON DELIVERY
SATURDAY, DECEMBER 6, 1947
at 2 p.m., C.S.T.

THE FIRST HUNDRED DAYS

Address by Paul M. Herzog,
Chairman of the National Labor Relations Board,
before the Institute on Labor Law
of the University of Minnesota.
Minneapolis, December 6, 1947.

The National Labor Relations Board has been administering the new Labor Management Relations Act since August 22 of this year, a brief span of one hundred days. During this time we have been learning a great deal about the questions that are bound to face the government, and industry and labor, as the new law moves into the first period of practical application. The cold words on the statute books are commencing to take on life, for employers and working people have begun to bring their problems to the Board, knowing full well that many will be dealt with differently than they were while the original Wagner Act was still in effect.

The Members of the Board are gradually discovering what the principal problems are likely to be. We are making our discoveries on a day-to-day basis. They are rarely revealed in the theoretical terms which gave rise to so many expressions of opinion, both pro and con, while enactment of the legislation was still the subject of debate. So far as the Board Members are concerned, that stage has long since passed. We have been charged by the President and the Congress with the responsibility

(Draft)

of administering the laws written. It is not the Board's function, or mine, to comment on the merits of the statutes for duty is limited, although it is not always simple: to do justice under law.

Initial disappointment is inevitable if you expect me to provide the answers, today, to many of the questions that are troubling you. Many of the very same questions are troubling the Board. But we cannot provide answers until we have had an opportunity to study the problems as specific cases come before us for decision. Any off-hand observations I might make could not bind my four colleagues, nor would you expect me, as a quasi-judicial officer, to reveal prematurely the answers I think the Board will give, or should give, to some of the more important questions. As practical men, you would of course prefer to learn many of these answers this afternoon. But as men who are embarking on the educational journey planned jointly by the University and the State Federation of Labor, perhaps you will be satisfied with an attempt to outline a number of the problems with which the Board is wrestling, and to summarize those few answers that we have already announced. Indeed, because you are gathered together for an educational purpose - and that means for self-education - it is appropriate that I confine myself to stating a few of the problems which can only be solved, in the long run, with the thoughtful assistance of the American people. There is no single wise solution for many of them. They must be explored and re-explored by all of us in the spirit of free inquiry. Nor should anyone assume that such exploration is futile if it results only in conclusions that should have been self-evident at the outset. For, unfortunately, "The trouble about man is twofold. He cannot learn truths which are too complicated;

I am glad to accept that as true and hereby give that Presidents backing; almost a third of those cases are already off our docket.

Meanwhile, however, we have had to devote many days, together with the General Counsel, to working out revised technique to handle the Board's work consistently with the procedural provisions of the amended statute. This period, fundamentally one of inventing and then constructing new machine tools, should be over by the first of the year. But it seems clear to me that the Board Members will always continue to have some administrative functions. Although the Taft-Hartley Act has removed all of the Board's prosecuting powers and many of its administrative duties, and vested them

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1/ Rebecca West, The Meaning of Treason, 1947.

In an independent General Counsel, the fact remains that he continues to be an administrative agency in the broad sense of that term. If, as recently remarked by a Justice of the Supreme Court,[2] judges are administrators, so -- the one quasi-judges -- must remain, at the very least, quasi-administrators.

We have, nevertheless, gone much further than the Act itself required to implement that policy of Congress which sought to concentrate the Board Members' attention upon the judicial function of deciding litigated cases. The statute conferred on the General Counsel the supervision of the Regional Offices, but was silent concerning his authority to select and release regional personnel; in order to assure efficiency and concentrate responsibility, the Board also delegated the latter powers to him. Similarly, the law gave the General Counsel complete and final authority over the investigation and prosecution of charges of unfair labor practice, but apparently left the processing of representation (election) cases, from beginning to end, in the hands of the Board itself. Because most of the work on election cases has to be done by the field staff, which is responsible to the General Counsel for day-to-day operations, it seemed only sensible to delegate the initial handling of all such matters to his Office, rather than waste public funds by creating an entirely separate field staff responsible directly to the Board. This was done in August; so far it has worked extremely well. Of course, although the action of the General Counsel in unfair labor practice cases is not appealable, in representation cases the final action of his regional agents can be appealed, even before hearing, directly to the Board itself.

2/ Address by Mr. Justice Burton, printed in the Journal of the American Bar Association, November, 1947.

Because the Board Members' functions only are primarily judicial in character, and action is ordinarily taken only at the very end of the assembly line operation which characterizes the agency's operations, for this reason it is only natural -- and, I may add, entirely proper -- that the principal responsibilities and decisions concerning policy under the Taft-Hartley Act should have been issued, not by ourselves, but by the principal administrative officer, the General Counsel. The Board Members' own views of the applicable law can only be uttered in decisions in particular cases when they finally reach us, after informal investigation, after hearing and after the submission of briefs or oral argument. That is going to take time, but fortunately -- if the Board's old record can be maintained -- less than ten percent of the cases filed will ever reach the stage of formal Board decision. The overwhelming majority are withdrawn, dismissed or, best of all, settled in the Regional Offices.

As relatively few cases were filed under the new law until early October, it is only natural that practically no controversies arising purely under that law should yet have reached the Board Members for final decision. Nor are many likely to do so for several months. We have been concentrating in Washington upon the hundreds of old Wagner Act cases that must still be decided before we can turn our full attention to the new material. In handling these since August 22, the Board's principal problem has been to determine whether, and to what extent, the amended law should be applied in deciding cases that arose and were tried long before it was placed upon the statute books. The Act itself affords little guidance on this problem. We have had to consider -- especially in the

field of remedy as general principles of law, the impact of the new Congressional declaration of policy, and the question of what is the fairest way to deal with the rights of parties who tried their cases under the set of rules only to discover that another set was in effect when the verdict was about to be handed down. We have answered some of these difficult questions already, on a case-to-case basis, and welcome supplemental briefs from the unions and employers directly affected.

Because Congress spoke explicitly in the new Act by excluding supervisors from the definition of the word "employee", the foremen's cases have presented relatively little difficulty. In September, the Board dismissed all pending election petitions involving supervisors; it has also refused to proceed further in cases involving employers' refusals to bargain with foremen's unions, whether affiliated or independent. The Board has declined, however, to withdraw from the Courts a number of its orders involving the reinstatement of individual supervisors who were discriminatorily discharged before August 22, 1947. The action of the Courts to date indicates that this policy is sound.[3/]

In several recent decisions on old cases, the Board has had to consider the effect of the new Section 8(c), commonly known as the "free speech amendment." It reads as follows:

> "The expressing of any views, argument, or opinion, or the dissemination thereof, whether in written, printed, graphic, or

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3/ NLRB vs. Vail Mfg. Co., Petition for rehearing denied, U. S. Supreme Court, November 17, 1947, 21 LRRM 2044; Eastern Gas & Fuel Associates vs. NLRB, (CCA 6) 20 LRRM 2582.

> [illegible] Form, that] the [illegible] [illegible] [illegible]

and (h), bringing to the Courts those questions of constitutionality that are found to be raised. Secondly, compliance by the major labor organizations is practically at variance with some unavoidable that failure to comply will pose very grave problems for the Board. On November 25, 125 national and international unions - AFL, CIO and unaffiliated - were in full compliance, as were 2176 locals. Of the complying internationals, 70 were affiliates of the American Federation of Labor.

It seems clear that this action was greatly accelerated by the Board's decision of October 7, which held that if a local and international union were in compliance, it was immaterial that all the officers of a parent federation like the AFL or CIO might not have complied.[5] This decision was reached in a representation case, but the General Counsel, whose contrary ruling we had reversed, graciously announced that he would apply the same policy to unfair labor practice cases.

Once this difficult problem was out of the way, there was a tremendous break in the log-jam, not only with respect to compliance itself, but also because the Board and its Regional Offices could again resume processing over a thousand cases on the merits. A number of other problems created by Sections 9(f) (g) and (h) required immediate solution. Naturally, the Board soon held that it would not entertain or proceed with any election petition filed by a non-complying union, even though it was filed before August 22.[6] We also struck the names of such unions off the ballot in elections where they had intervened in representation cases filed by petitioners that had complied;[7] they are, however, still permitted to intervene

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5/ Matter of Northern Virginia Broadcasters, Inc. Radio Station WARL, 75 NLRB No.2.
6/ Matter of Rite-Form Corset Co., Inc., 75 NLRB No. 19.
7/ Matter of Sigmund Cohn & Co., 75 NLRB No. 20.

of the hearing stage, to refuse to entertain the application of a contract as a bar to a petition on some other basis, because the law expressly prohibits the Board from making any "investigation" of a petition unless supported by a non-complying union, and because any action by this Board in such a case constitutes part of the investigation, we have also recently declined to issue a certification to a non-complying organization that won an election, but was not actually certified, before the effective date of the Act.[8/]

A much more difficult problem is presented when an employer files a petition asserting that a non-complying union claims to represent a majority of his employees, and asks for a Board election to resolve the issue. Although it is the employer that invokes the Board's machinery, the fact remains that the question concerning representation is "raised" by the union's claim to represent a majority. Conflicting policy considerations are clearly present in such a situation, because the employer may want the election more than the non-complying union. After weighing the arguments both ways, the Board held, earlier this week, that even here non-compliance should be a bar to placing a labor organization on the ballot.[9/] A major question remaining is whether the Board can or should apply the same rule in cases in which it is presented with a so-called decertification petition, in which a group of employees assert that an incumbent union no longer represents a majority in an appropriate unit. (Section 9(c)(1)(A)(ii).) A decision on this question should be forthcoming soon.

Non-compliance does not have the same results in pending unfair labor practice cases. Because the law provides

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8/ Matter of Myrtle Desk Company, 75 NLRB No. 29.
9/ Matter of Hermann Loewenstein, 3-RM-1, decided December 2,1947.

only that "an employer shall be required" as a charge brought by a non-employing union, the Board has unanimously held that if a complaint issues before August 22, 1947, it has jurisdiction to process, and will process, as a matter of the merits despite the absence of employees.[10] However, a majority of the Board held that in cases of such cases, involving refusals to bargain collectively under Section 8(5), it would modify the usual remedy by not requiring the employer to bargain in the future unless and until the union had complied. The dissenting Board Members have followed the majority views in later cases involving the same question, thereby establishing, for the first time in the history of the Board, this most desirable procedural precedent.[11]

With these preliminary questions out of the way, the Board is girding itself to deal with the dozens of other issues that are beginning to arise all over the country. So far, no case involving the new unfair labor practices against unions under Section 8(b) has been the subject of a preliminary decision by a Trial Examiner, let alone a ruling by the Board itself. The cases you have been reading about, involving the issuance of complaints and occasional requests for injunctions, fall entirely within the independent jurisdiction of the General Counsel. Until the Board and the Courts have spoken, no one can be certain what the law will be on many of these subjects.

Meanwhile there has been great interest expressed as to how the Board is likely to handle jurisdictional disputes over work-tasks, a duty assigned to us by Sections 8(b)(4)(D)

10/ Matter of Marshall & Bruce Co., 75 NLRB No. 13.
11/ Matter of Plankinton Packing Co., 75 NLRB No. 32.

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10/ Matter of Marshall & Bruce Co., 75 NLRB No. 13.
11/ Matter of Plankinton Packing Co., 75 NLRB No. 32.

and 10(k) of the amended statute. Together with the General Counsel, we have begun, administratively, to devise techniques to deal with these problems. This is going to take time, because these provisions represent the first effort by Federal law to cope with difficult problems which we alone have not always solved to the satisfaction of themselves or the community. Congress evidently intended that the Board should step into these situations only when the contesting parties do not succeed in adjusting their differences promptly by themselves. With this purpose in mind, we are already doing what we can to encourage the labor organizations and employers in the building construction industry to devise effective methods to resolve their own difficulties. Meanwhile we are making it abundantly clear that the reserve power of the Government is not dormant. The new Rules and Regulations provide means by which the Board can proceed to hear and determine jurisdictional disputes whenever necessary. 12/ To date only 24 such cases have been filed with the Board.

Public curiosity has also been aroused by two sentences in Section 10(c) of the new law. The first reads as follows:

> "That in determining whether a complaint shall issue alleging a violation of section 8 (a) (1) or section 8 (a) (2) and in deciding such cases, the same regulations and rules of decision shall apply irrespective of whether or not the labor organization affected is affiliated with a labor organization national or international in scope."

The Congressional reports and debates clearly indicate that by this provision, the sponsors of the Act desired the Board to depart from one of its earlier practices. Under the Wagner Act, the Board customarily disestablished labor organizations

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12/ Sections 203.74 ff. The details of the proposed procedure are outlined in an address given by Chairman Herzog before the American Management Association on October 2, 1947, 20 LRR 360.

found to be company-assisted or dominated if they were unaffiliated, but merely directed the employer to cease and desist from assisting them if they happened to be affiliated with the AFL or CIO. We believed that there were sound reasons for that practice, but Congress having found otherwise in June, I would not presume to reiterate them in December. From this time forward we will treat both types of company-assisted unions the same. This means that the Board will either disestablish both affiliated and unaffiliated unions if the records reveal similar degrees of company assistance, or will disestablish neither. Our action in these cases will also have an important effect on the right of such labor organizations to appear on the ballot in elections conducted following the issuance of Board orders.[12] The Board's application of these interesting provisions will appear in decisions that will issue in the months ahead.

Another portion of Section 10(c) that will require the most careful consideration provides that the Board may not reinstate, or direct back pay for, an employee who was suspended or discharged "for cause." This will raise questions in those frequent situations where an employer asserts that a man was discharged because of some rule violation or misconduct, but the charging union contends -- even assuming that the employee was not free from blame -- that this was only a pretext for a dismissal that was really motivated by the man's union activities. The Board's action in cases of this character will have to depend upon the facts in each case and, even more important, upon our interpretation of the legislative intent of Congress. There is a great deal of material in the debates and Committee reports on

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12/ See Section 9(c) (2).

this subject, and — quite frankly — it is not all one way or all the other. There are some indications of a desire to modify prior Board practice; there is also evidence that other Members of the Congress believed that they were not changing pre-existing law. We will do the best we can with the materials at hand. If we are wrong at times, Congress and the Courts can be counted upon to tell us so.

Here in Minnesota you must be wondering what effect the new Federal law will have upon the operation of the State's labor laws. It is a little too early to say with precision. Section 10(a) declares Congressional policy on the relations of the National Board with State labor agencies. In essence, it authorizes the National Board to cede, by agreement with any State Board, jurisdiction over labor disputes that may affect interstate commerce (except in manufacturing, communications and the like), provided certain conditions are satisfied. The principal condition is that the State law, or its application by the State Board, shall not be inconsistent with the corresponding provision of the Federal Act.[14/] The General Counsel and the Board have opened discussions with several State agencies, all of which are offering full cooperation. We trust that some practical means can be devised whereby the paramount Federal power may be maintained, without depriving the States of the right to continue to handle essentially local controversies as they have done in the past. Moreover, it is my personal hope that this can be accomplished without imposing

14/ Note, however, Section 14(b).

Federal policy too rigidly, lest we discourage experimentation in the separate compartments afforded by the several states.[15/]

Altogether aside from the policy considerations which happen to appeal to me, there are ample practical reasons why we should encourage the States to handle as many local labor controversies as the Constitution and the statute permit. The National Labor Relations Board is sure to be faced with a tremendous case-load as operations move into high gear. No matter how generous the Congress may be with appropriations next year, there are bound to be substantial delays in handling the huge mass of work that lies ahead. Even if most of our cases are adjusted in the Regional Offices as in the past, the substantial portion that is litigated must ultimately pass through the hands — and, what is more serious, before the eyes — of the five men who sit on the Board in Washington. It is hard enough to do justice; it becomes impossible if the deciding body is not familiar with the evidence and contentions presented by the parties who have labored to build the record. That takes time. If I tell you that about 190 unfair labor practice cases alone are now awaiting decision in Washington, you will see for yourselves how much time it takes.

That is bad for us, but it is worse for you. For it is the employers and employees who bring their troubles to the Board who can least afford to wait, for the feelings that are aroused by labor controversies are likely to grow more intense when litigation is protracted. I can

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15/ See Holmes, J., dissenting, in Truax v. Corrigan, 257 U. S. 312, 344.

only plead for patience -- a continuation of that patience which most of industry and most of labor displayed when the Board was weighed down by a heavy back-log during the days of the Wagner Act. I hope that we can do better, but do not dare make any promises until we know how large the Board's new case load and staff are likely to be.

Here are a few portents of the future: The incoming cases have been increasing in number every week since mid-October. Over 2500 were filed in the first three months after August 22;[16] although the final figures are not yet available, it seems probable that 1300 were filed in November alone. For the entire period, about 40% of the new cases involve charges of unfair labor practice against employers or unions; the remaining 60% are petitions requesting elections for the choice of a bargaining representative or to authorize a union-shop. Cases of the last type have been pouring in particularly fast during the recent weeks; over 200 were received just during the third week in November. As more and more unions come into compliance and ask employers to agree to union-shops, what now seems a heavy flow will appear, by comparison, to be a mere trickle. The Board estimates that about half the cases filed in the next year will be requests for elections to authorize a union-shop. It is too early to say how promptly we will be able to handle them. Interest apparently will run high in these referenda; in those conducted so far, over 90% of the eligible voters have cast their ballots and over 90% of these have voted in favor of union security.

16/ About 3% of them in the Minneapolis Office, headquarters for the Board's Eighteenth Region.

Few of the other figures yet available are complete enough to reveal any trends. However, special factors give some of the statistics distorted significance. For example, delayed union compliance with the filing requirements makes the number of unfair labor practice charges filed against employers -- 820 -- appear twice as large as it really is, because many individual employees have filed separate charges in situations where they would normally have pooled them in a single charge filed by a union representative. Actually, such charges have been filed against about 400 employers during the first three months, as compared to a total of approximately 270 filed against labor organizations by employers or individuals. On the representation case side, omitting union-shop referenda, the same period discloses that 700 election petitions were filed by labor organizations,[17/] precisely as they could have been under the Wagner Act, whereas a total of about 250 new-style petitions were filed either by employers or by employees requesting the decertification of an incumbent union. Until several more months have passed, no one can speak with certainty as to how the Board will be used or by whom. So far as we are concerned, it does not matter who initiates a proceeding. The Board will do all that it can, within the statute and the limits of human fallibility, to do even-handed justice, to promote industrial peace and to encourage collective bargaining.

The encouragement of collective bargaining is still the announced policy of the United States. The sponsors

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17/ Here again, the fact that few unions were able to file petitions until early November, because not yet in compliance with Sections 9(f) and (h), deprives the 700 figure of much significance.

of the new legislation, from which the Board derives its mandate, have declared that to be their purpose, but have modified some of the policies of the Wagner Act because they evidently believed that some doctrines that had developed under that Act and some omissions from its provisions had stimulated abuses that required correction as much as collective bargaining required encouragement. The Board's duty is to implement both these purposes. The new purpose will be carried out in full accord with the intent of Congress, but the old will never be neglected by the present Members of the Board. For we believe deeply in collective bargaining. No other method of dealing between employers and employees in large industrial enterprise can bring us closer to the democratic ideal of government by the consent of the governed. However, like democracy itself, collective bargaining can never be fully achieved; it always remains "unfinished business of an exceptionally emotional kind." 18/ It is not always the easy way, or even the most tranquil one. But, so long as American workmen are free to decide by secret ballot whether or not they desire collective representation, it is the surest way in an uncertain world to assure some dignity to the individual American workman.

A Federal Court, not a labor union or the Labor Board, has most eloquently phrased the reasons why collective bargaining, culminating in a written agreement, is a consummation devoutly to be wished:

> "The trade agreement [is] the industrial constitution of the enterprise, setting forth the broad principles upon which the relationship of employer and employee is to be conducted. * * * The thing of importance is that the agreement sets up a modus vivendi, under which employer and employee are to carry on. * * * If reason and not force is to have sway in industrial relationships, such agreements should be welcomed by capital as well as by labor. They not only provide standards by which industrial disputes may be adjusted, but they add dignity to the position of labor and remove the feeling on the

18/ Selekman, Labor Relations and Human Relations, 1947, p. 16.

> part of the worker that he is a mere pawn in industry subject to the arbitrary power of the employer." 12/

Collective bargaining is here to stay, but there are new rules under which it is to be sought, conducted and secured. When addressing a management audience early in October, I ventured the opinion that the spotlight was not on the employers of the nation as it had been on union labor in the last decade. I suggested that management exercise restraint in using its newly-won powers under the Taft-Hartley Act. Today's audience is convened partly under the auspices of a State Federation of Labor, which appears likely to be less enthusiastic than management about some of the new rules. What message should I bring to you?

It is simply this: Remember that although the brightest spotlight may now be on management, the one that shines on you is far from dim. Your fellow citizens will judge you, not by your attitude toward the new law, but by your conduct under it. You are Americans, so aware already of your obligation to conform that conduct to the law of the land that I would not presume to suggest that you do so. It is important, however, that you do more than just comply with the new provisions of the statute. While I do not urge that you withhold the exercise of your continuing individual right to question the wisdom of some of its provisions, any more than I ever suggested to management that it refrain from criticizing the Wagner Act, it seems clear to me that it is to the interest of labor to give the new law a fair trial. Bring your problems to the Board; no man ever strengthened his position as a defendant by declining to be a plaintiff when his own interests were at stake. Do not repeat the error made

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12/ N. L. R. B. vs. Highland Park Manufacturing Co., 110 F. 2d 632, 638 (C. C. A. 4).
American Management Association, New York City, 20 L.R.R. 369.

by management's famous 58 lawyers, who advised their clients in 1935 not to follow the precepts of the Wagner Act. Not only did they guess wrong as to that Act's constitutionality, but they did serious injury to the relations between the employers who heeded their advice and their own employees. By taking such an irreconcilable position, they made it just that much more difficult to induce the representatives of labor to consider, on the merits, the wisdom of some of the provisions of the original law. Inflexibility breeds inflexibility. It puts a damper on that experimental spirit with which Americans have always tested their institutions. Determine your actions today in the perspective of history, and history will look kindly upon you.

Labor legislation has played a tremendous role in the recent annals of our country. Forces and counter-forces have come into play. Much has been written about the swing of the pendulum, first one way and then the other, during the years since 1932. In my opinion, that pendulum can never be expected to come to rest. Nor should it, so long as we enjoy the blessings of democracy. Because "government has the primary responsibility of safeguarding the whole against the part," 21/ it is inevitable that the representatives of the people should conclude at one period that correction is needed at one point, and at another period that it is required at another. On the whole -- and it is upon the whole that these matters must always be judged -- it is not nearly so important whether a particular correction seems wise as it is that the people be free to appraise its wisdom. Because freedom without knowledge is of little value, it also is essential that an informed public opinion be constantly available to evaluate the needs of the community and then to give expression to that evaluation.

21/ MacIver, The Web of Government, 1947, p. 350.

An informed opinion is particularly indispensable where the relations between labor and management are concerned, lest ignorance and the tensions generated by economic struggle provide a happy-hunting ground for the anti-democratic forces of the extreme left and extreme right. Tolerance and understanding, a recognition of the other man's right to differ even to the point of being wrong, are our strongest weapons against these forces. No god of the opera stage has placed these weapons in a tree for us to pull forth and do battle for democracy. We must forge them for ourselves. That is why it is critically important that the Universities of America provide a market-place in which employers and union representatives may exchange ideas so freely that no one can return home without having replaced predeliction with knowledge, and prejudice with clarified vision. That is why you are here today, and it is also why I have come from Washington to be here with you.

(END)

December 2, 1947

Mr. Ben W. Johnson, Secretary-Treasurer
Flour, Feed Mill and Cereal Workers
Local Union No. 21818
2515 Beevers
Dallas 16, Texas

Dear Sir and Brother:

In compliance with the request contained in your letter of November 25, I am sending you, under separate cover, a complete set of our material on the Taft-Hartley Act, including five bulletins and summary of provisions of the Act, also our pamphlet covering the conference of July 8, 1947. 12/3/47

Fraternally yours,

Secretary-Treasurer,
American Federation of Labor.

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& Coach. Fed &
Locals

AERONAUTICAL INDUSTRIAL DISTRICT LODGE 727

INTERNATIONAL ASSOCIATION OF MACHINISTS

AFFILIATED WITH A.F. OF L.

December 4, 1947

Mr. William Leonard Duncan, President
Smelter Workers Union No. 21538
Box 641
Blackwell, Oklahoma

Dear Sir and Brother:

This will acknowledge receipt of your letter of November 29.

Under separate cover I am sending you ten copies of Public Law 101 (the Taft-Hartley Act), and two complete sets of our material on the Taft-Hartley Act, including five bulletins and summary of provisions of the Act, also a pamphlet covering the conference of July 9, 1947.

12/4/47

The Constitution of the American Federation of Labor and the Model Constitutions for Local Unions are now being printed. They will be ready for distribution within the next few weeks. Please let us know which of these Constitutions you desire and we will send them to you as soon as they are delivered.

Fraternally yours,

Secretary-Treasurer,
American Federation of Labor.

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FREE LABOR WILL WIN ☆

SUNSET 1-5163
STANLEY 7-1526

AERONAUTICAL INDUSTRIAL DISTRICT LODGE 727

INTERNATIONAL ASSOCIATION OF MACHINISTS
AFFILIATED WITH A. F. OF L.

5601 LANKERSHIM BLVD.
NORTH HOLLYWOOD, CALIF.

December 5, 1947

Mr. W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor
Washington 1, D. C.

Dear Sir and Brother:

The material on the Taft-Hartley Act which I requested previously and to which you refer in your letter of November 25th was received this morning.

We appreciate this courtesy very much and hope to be able to reciprocate some time.

Fraternally yours,

Ivan Deach Jr.

Ivan Deach Jr.
President

ID:sl

Correa. Ky. State Federation of Labor - Mrs. E. Taylor
Secy. Treas. Dec. 6, 1947 in re support of candidates who
voted against the Taft Hartley law and defeat of those
who voted for the law - see file

POLITICAL KY.

WESTERN UNION

SYMBOLS
DL = Day Letter
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Time shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

TA43

12/11/47 Wm Hunking

T.HD483 NL PD=HOLLYWOOD CALIF 10
GEORGE MEANY.SECY TREASURER=
AFL BLDG WASHDC=

RECEIVED 11 AM 2 21

Rec'd 12-11-47

PLEASE FORWARD EARLIEST COPY OF PROPOSED SOCALLED RIGHT OF EMPLOYMENT BILL SUGGEST BY REPRESENTATIVE HARTLEY TO BE CONSIDERED BY HOUSE COMMITTEE JANUARY 12TH. GREATLY CONCERNED OVER ANNOUNCED PLAN THAT C B DE MILLE TO APPEAR AND NEED COPY OF PROPOSED LEGISLATION TO DETERMINE STRATEGY REGARDS=

CLAUDE L MCCUE EXECUTIVE SECRETARY AMERICAN FEDERATION OF RADIO ARTISTS LOSANGELES LOCAL 6331

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

WESTERN UNION

JOSEPH L. EGAN
PRESIDENT

SYMBOLS
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NL = Night Letter
LC = Deferred Cable
NLT = Cable Night Letter
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Time shown in the date line on telegrams and day letters is STANDARD TIME at point of origin. Time of receipt is STANDARD TIME at point of destination

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BW DEC 11 AM 2 21

HOLLYWOOD BLVD HOLLYWOOD CALIF..

THE COMPANY WILL APPRECIATE SUGGESTIONS FROM ITS PATRONS CONCERNING ITS SERVICE

AMERICAN FEDERATION OF LABOR

WESTERN UNION

1206-B

$

CHECK

ACCOUNTING INFORMATION

TIME FILED

A. R. WILLIAMS
PRESIDENT

NEWCOMB CARLTON
CHAIRMAN OF THE BOARD

J. C. WILLEVER
FIRST VICE-PRESIDENT

Send the following telegram, subject to the terms on back hereof, which are hereby agreed to

WANT A REPLY?
"Answer by WESTERN UNION" or similar phrases may be included without charge.

DECEMBER 11, 1947

CLAUDE L. McCUE, EXECUTIVE SECRETARY
AMERICAN FEDERATION OF RADIO ARTISTS LOCAL 6331
HOLLYWOOD BLVD.
HOLLYWOOD, CALIFORNIA

BILL NOT INTRODUCED BUT IF EXPLORATORY HEARINGS, BEGINNING ABOUT JANUARY NINETEENTH, JUSTIFY SUCH AMENDMENTS TO TAFT-HARTLEY LAW BILL WILL BE PREPARED, INTRODUCED AND PRESSED FOR ENACTMENT.

GEORGE MEANY

CHICAGO ILL

8215 INGLESIDE

RECEIVED
DEC 11 1947

WILLIAM A GREENE

PRESIDENT AFL

SIR

ACCORDING CHICAGO NEWSPAPERS THE NAM AND SPECIAL INTERESTS WHO ARE OUT TO DEFEAT AND TIE LABOR HAND AND FOOT ARE AGAIN GOING ATTACK LABOR ON ANOTHER FRONT WHEN AND DURING THE SPECIAL SESSION OF CONGRESS , BY THIER ATTACK ON THE FORTY HOUR WEEKS AND PREMUUMS TIME FOR SATURDAY ETC HOPE YOUR FORCES ARE LINED UP ON ALL FRONTS TO SLAP THIS MOVE BACK INTO THE LAPS OF ITS SPONSORS AND THAT LABOR WILL SEE THE DAY NOT TOO FAR DISTANT THAT SHE WILL BE ABLE LIVE A PEACEFUL EXISTENCE WHEN SHE HAS TRUE REPRESENATIVES OF ALL THE PEOPLE IN THE WHITE HOUSE

YOURS TRULY J E SULLIVAN CTU-AFL

H. N. FLEGAL
INTERNATIONAL PRESIDENT

WM. TRACY
INTERNATIONAL SECRETARY-TREASURER

LABEL

United Brick and Clay Workers OF AMERICA

Affiliated with American Federation of Labor

ORGANIZED MAY 18TH, 1894

REORGANIZED JANUARY 1ST, 1915

ROOM 7, MARY BLDG., SECOND FLOOR
1550 WEST 95TH STREET
TELEPHONE: CEDARCREST 0042

CHICAGO 43, ILLINOIS

December 12, 1947.

Mr. George Meaney, Sec'y.-Treas.,
American Federation of Labor,
American Federation of Labor Bldg.,
Washington, D. C.

Personal

Dear Sir & Brother:

I would like very much to have ten (10) copies each of bulletins 1 to 5 inclusive on the Taft-Hartley Law, and the "personal" is because I want them at the earliest possible time.

I have a granddaughter going to the University of Illinois, and this is her Freshman year. She made quite good on the debating team in high school, and recently a number of the students at the University were asked to select one of the most important subjects of the day taken from the whole world situation, and the subject selected would then be discussed at a round-table conference. The granddaughter did a little organizing and, by a small majority, they selected the Taft-Hartley Law as the most important subject at the present time. She informs me that many of those who she influenced to vote for this subject did not even know that such a law existed, and they are naturally depending upon her for information on the subject, and they have formed another organization on the inside and will elect to oppose the law.

I have gathered considerable data on the subject but I find that our office is absolutely out of these bulletins, and I would appreciate it very much, George, if you would send them along at the earliest possible time, as this discussion will take place at the University after the first of the year, and the granddaughter and her crowd want to make a study of same during the vacation period, and they will be leaving for home for the vacation on the 20th of December.

In closing, I get a big kick out of this proposition because in the first place the faculty seems very much surprised that this should be voted the most important subject of the day, and secondly, the granddaughter has been interviewed by several teachers, since she was the agitator for the subject, as to how come she is so interested, as a girl, in this subject. So far she has not given out any information as to

RECEIVED DEC 15 1947

what her home connections are, and she is slated at the address of my son, who happens to be a farmer in the vicinity of Champaign.

No doubt there will be minutes taken on this discussion, and I am sure they will be interesting to all of us, and win or lose, we will at least get the subject before the public, and above all, before the younger generation who is not acquainted with the Labor Movement.

Thanks for the assistance, and with very best wishes, I remain,

Fraternally yours,

Wm. Tracy

Wm. Tracy
International Sec'y.-Treas.

WT:Jm

RECEIVED DEC 15 1947

December 17, 1947

Mr. William Tracy, Secretary-Treasurer
United Brick and Clay Workers of America
1550 West 95th Street
Chicago 43, Illinois

Dear Sir and Brother:

In compliance with your request of December 12, I am sending you, under separate cover ten sets of our pamphlets on the Taft-Hartley Act, including five bulletins and summary of provisions of the act, and a pamphlet covering the conference of July 9, 1947. These are going forward by first class mail and should reach you in time to distribute to the debate team before they leave for the Christmas holidays.

With best wishes, I am

Fraternally yours,

Secretary-Treasurer,
American Federation of Labor.

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cel u#2

December 17, 1947

Mr. Bernard Bernstein
Syracuse Univereity
782 Ostrom Avenue
Syracuse, New York

Dear Sir:

I am mailing you a copy of the Taft-Hartley Act and an analysis of it by our attorney in the form of several pamphlets.

I hope this material will be helpful to you.

Very truly yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

H/a
Enclosures

December 18, 1947

Mr. John E. Cudahy, President
Harvester Federal Labor Union No. 22631
2118 W. National Avenue
Milwaukee 4, Wisconsin

Dear Sir and Brother:

Your communication to Frank Fenton, who is now in Europe, concerning Federal Labor Union No. 22631 has been referred to me for reply.

You state that the Plant Protection Employees of the International Harvester Company at the Milwaukee works has had a representation election and were certified by the National Labor Relations Board as the bargaining agent under a separate unit about two years ago. You further state the company has now refused to bargain any longer with this union.

WJ

With respect to this question, under the Taft-Hartley Law, concerning these employees, Section 9B (3) reads as follows:

> "* * * no labor organization shall be certified as the representatives of employees in a bargaining unit of guards if such organization admits to membership, or is affiliated directly or indirectly, with an organization which admits to membership, employees other than guards."

We find it impossible to extract any quotations from the Congressional Record and the Committee Reports to support a true definition on this part of the law. At the very least, the sparce legislative history is ambiguous on the subject. No one can say what Congress actually meant

See Reg

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with respect to these employees. However, we have been advised by our Legal Department to submit this issue to the Board for an interpretation if an employer should question the right of representation to a separate unit covering Plant Protection Employees.

As you know, the National Labor Relations Board has recently ruled that a union is in full compliance with requirements of the Labor-Management Relations Act where such requirements have been met by the Local Union involved and the national body to which it is directly affiliated whether or not the top national parent body (i. e. the A. F. of L.) has met such requirements. This decision, in my opinion, could be used in supporting a separate plant guard unit affiliated with the American Federation of Labor before the Board.

In view of the fact that the Board has not ruled on this matter, I do not feel that we should try to interpret the law ourselves. Therefore, it is suggested that if the employer still refuses to bargain with the union for these employees that a charge be filed with the Board in order to get their interpretation of the law so that we will know what steps can be taken to lawfully represent these employees under the Act.

Please keep me advised on this matter and do not hesitate to call on us if we can be of any further assistance.

With best wishes, I am

Fraternally yours,

Walter J. Mason
National Legislative Representative

WJM/a

Mr. Isenberg

Kenneth R. Roman
Box 152
Juneau, Alaska

fyi

December 19, 1947

Mr. J. E. Sullivan
8215 Ingleside
Chicago, Illinois

Dear Sir and Brother:

Please be assured that the American Federation of Labor is alert to the situation existing in the Congress. We know the National Association of Manufacturers and powerful organizations of capital are seeking to destroy and limit the activities of Labor.

We will put forth special efforts to defeat the purpose of these reactionaries. I thank you for bringing this letter to my attention.

Very truly yours,

President
American Federation of Labor

mr

Sincerely yours,

Kenneth R. Roman Organizer
American Federation of Labor

RECEIVED DEC 23 1947

COPY TO: Mr. Geo. Kenny, Secretary A. F. of L.

Kenneth R. Bowman
Box 152
Juneau, Alaska

December 23, 1947

Mr. Herbert S. Thatcher,
Law Offices of Padway, Hall, Thatcher, Glen & Wilson,
General Counsel, American Federation of Labor,
736 Bowen Building,
Washington 5, D.C.

Dear Sir:

I have received your letter of December 12, 1947, which states that all organizations within the Territory of Alaska come within the complete scope of the Taft Hartley Act.

The last paragraph, quote, "Any Commercial activity at all within the Territory, including the operation of a Shoe Shine stand would be covered by the Act".

If the Taft Hartley Act covers every organization, and every activity of such organization within the Territory of Alaska, then by the same token would not the Forty-Hour Law apply as the standard for all workers and all industries in Alaska. It is my idea that if the Alaskan workers are to be burdened in all respects with this unworkable law, that we shall attempt to gain as favorable conditions as possible through application of the rulings which make this law applicable to Alaskan workers by applying the same procedures to other laws such as the Forty-Hour Law.

Sincerely yours,

Kenneth R. Bowman Organizer
American Federation of Labor

RECEIVED DEC 29 1947

Wm. G. Lightbowne,
133 W. Grove St.,
Bogota, New Jersey

Mr. Hudson

Dec. 28, 1947

American Federation of Labor,
Washington, D. C.

Dear Sirs--Can you send me an authoritative summary of Labor's objections to the Taft-Hartley Act--something that I can use in a debate. I am taking Labor's side, but so far, while the Act has been summarized from the point of view of the employers, I have yet to see an official summary from Labor's point of view.

For use in a debate it is not enough to call names, such as saying the Taft-Hartley Law is a "slave labor law," or that it "puts labor in chains," oe other such generalities, and yet that is all I have been able to find so far. Surely, there must be an official summary, setting forth just what Labor objects to, and giving chapter and verse.

For instance, is it true that under the T-H-L a union cannot drop a man from membership except for non-payment of dues? That even if a member Rats on his own union he cannot be dropped from membership? That's the kind of definite information I need for this debate, and I sincerely hope you can help me out by sending me, or telling me where to look, for such a summary from Labor's point of view.

Sincerely yours,

Wm. G. Lightbowne

Card No. 3454, Int. Type. Union.

RECEIVED DEC 30 1947

December 31, 1947

Mr. William G. Lightbourne
133 W. Grove Street
Bogota, New Jersey

Dear Sir:

In compliance with your request of December 28, I am sending you, under separate cover, a set of our material on the Taft-Hartley Act, including five bulletins and summary of provisions of the act, and a pamphlet covering the conference of July 9, 1947.

1/4/48

Very truly yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

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